

**THE MAHARASHTRA REAL ESTATE REGULATORY  
AUTHORITY, MUMBAI.**

COMPLAINT NO: CC006000000100576

Bhavna Avinash Bodhare

... Complainant.

COMPLAINT NO: CC006000000100526

Santosh Kisan Churmure and  
Tanvi Santosh Churmure

... Complainants.

**Versus**

Vidhi Realtors  
(Gaurav Discovery)

... Respondents.

MahaRERA Regn: P51800007949

**Coram:** Shri B.D. Kapadnis,  
Hon'ble Member II.

**Appearance:**

Complainants: Adv. Mr. Godfrey Pimenta.

Respondents: Adv. Mr. Krishna Agarwal.

**FINAL ORDER**

**23<sup>rd</sup> January 2020.**

The complainants have filed the complaints for seeking interest on their investments for delayed possession of their flats booked in respondents' registered project Gaurav Discovery situated at Malwani, Taluka Borivali, Mumbai. The complainants have furnished the following information.



| Complainants' Name               | Flat No.                      | Agreed date of possession | Consideration amount till agreed date ( in Rs.) | Subsequent Payment ( in Rs.)   |
|----------------------------------|-------------------------------|---------------------------|-------------------------------------------------|--------------------------------|
| Bhavna A. Bodhare                | <del>157</del><br>801, A wing | June 2017                 | 84,18,465/-                                     | 3,36,739/-<br>on<br>16/08/2017 |
| Santosh Churmure, Tanvi Churmure | 304, D wing                   | December 2018             | 28,13,645/-                                     | nil                            |

2. The respondents have pleaded not guilty but have not filed their reply. Mr. Agarwal requests for time for making the payment.

3. The agreements for sale executed by the respondents in complainants favour show that the respondents agreed to hand over the possession of the complainants' booked flats on the dates mentioned above but they have failed to do so and hence the complainants are entitled to seek interest on their investments for delayed possession.

4. The respondents have admitted the fact that the complainants have paid them the money mentioned against the name of the complainants in the above table. Hence, the complainants are entitled to get interest at prescribed rate on their amount from the next day of the agreed date paid prior thereto and from the date of subsequent payments till handing over the possession of the flats.

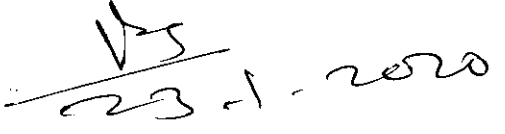
\* corrected by 39 of  
RRA  
11.3.2020  
Member - 11

The prescribed rate of interest is 2% above the SBI's highest MCLR which is currently 8.2%. The complainants are also entitled to get Rs. 20,000/- towards the cost of the complaint. The parties are permitted to adjust their current dues and pay the balance to whom it is due.

The complaints are disposed off accordingly.

Mumbai.

Date: 23.01.2020.

  
(B. D. Kapadnis)  
Member II, MahaRERA,  
Mumbai.